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Case Names: In the matter of the Ada Weeks Trust and the matter of the Benito Martinez Trust

Case Nos.: 25PR200567 and 25PR200568

INTRODUCTION

Shelby Weeks (“Petitioner”) filed two nearly identical petitions in the cases of the Ada Weeks Trust, 25PR200567 (“Weeks Petition”), and the Benito Martinez Trust, 25PR200568 (“Martinez Petition”).¹ Petitioner asserts that the trustee of both trusts, William Weeks (“Respondent”) committed elder abuse. In both cases, the seeks an accounting, removal of Respondent as trustee, surcharge of Respondent, double damages under Welfare and Institutions Code Section 15657.5, Probate Code section 859 damages, and disinheritance of Respondence pursuant to Probate Code section 259.

In both cases, Respondent filed an objection to the petition on November 25, 2025. Respondent asserts in each case that Petitioner lacks standing to seek relief. On January 20, 2026, Petitioner filed replies in both cases addressing the issue of standing. The court set the standing issue on the law and motion calendar for decision. It allowed the parties to file supplemental briefs by May 26, 2026. Petitioner filed her supplemental brief in docket 25PR200567 only on May 28, 2026.² Respondent filed no supplemental brief.

DISCUSSION

Petitioner contends that she has standing to pursue her claims because she is a successor trustee after Respondent under the terms of both trusts.

The standing provisions of the Elder Abuse Act provide that the personal representative has standing to pursue an elder abuse claim on behalf of the decedent after the decedent’s death and if there is no personal representative, a successor in interest or an interested person under Probate Code section 48 may pursue such a claim. (Welf. & Inst. Code, § 15657.3, subd. (d).) Where the elder is alive but incapacitated, “the elder’s personal representative may demand return of property on the elder’s behalf and, if unsuccessful, may bring an action for damages and other relief. ([Welf. & Inst. Code,] § 15657.6.) [Personal] representative is defined as a person or entity that is either (1) [a] conservator, trustee, or other representative of the estate of an elder or dependent adult or (2) [a]n attorney-in-fact of an elder or dependent adult who acts within the authority of the power of attorney.” ([Welf. & Inst. Code,] § 15610.30, subd. (d); see [Welf. & Inst. Code,] § 15657.6 [adopting definition of personal representative contained in § 15610.30, subd. (d)].)” (*Tepper v. Wilkins* (2017) 10 Cal.App.5th 1198, 1204-1205 (*Tepper*),

¹ Petitioner filed her petition in the Ada Weeks case on July 28, 2025 and in the Benito Martinez case on July 29, 2025. It appears Petitioner misspelled Benito and that it should be the Bennito Martinez trust. This court will use Benito.

² The court has discretion under Rules of Court, rule 3.1300(d) to refuse to consider late-filed papers. (See *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) Here, the court will exercise its discretion to consider the supplemental brief but Petitioner is admonished that failure to comply with deadlines may result in the court refusing to consider her filings.